

25CHCV00845 25CHCV00845

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-07-17

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF47%2C07%2F17%2F2026

Source SHA-256: 1b188c914817217a1a3c32a2023d7f1f95ebfa98c822b5a1c4eb2358036cbcae

Case Number: 25CHCV00845 Hearing Date: July 17, 2026 Dept: F47

Dept. F47

Date: 7/17/26

TRIAL DATE: 7/19/27

Case #25CHCV00845

MOTION TO SET

ASIDE DEFAULT

Motion filed on 3/2/26.

MOVING PARTY: Defendant Kamal Houssain

RESPONDING PARTY: Plaintiff Kenk USA Inc.

RELIEF REQUESTED: An order setting aside the default entered on 4/24/25 against Defendant Kamal Houssain.

RULING: The hearing on the motion will be continued.

This action arises out of the alleged embezzlement/conversion of over \$2 million from Plaintiff Kenk USA Inc. (Plaintiff) by employees, Defendants Sabah Mou (Mou), convenience store manager, and Defendant Kamal Hossain (Hossain) (collectively, Defendants), cashier. Plaintiff alleges that from approximately January 2022 through December 2024, Defendants "intentionally and deliberately exercised wrongful dominion over approximately two million, two hundred eighty

two thousand and forty-four dollars and ninety-five cents (\$2,282,044.95) of Plaintiff's cash revenue." (See Complaint ¶¶9-16).

On 3/10/25, Plaintiff filed this action against Defendants for: (1) Conversion, (2) Aiding and Abetting In Conversion; (3) Embezzlement and Misappropriation of Funds; (4) Aiding and Abetting in Embezzlement and Misappropriation of Funds; (5) Negligence and (6) Imposition of a Constructive Trust Pursuant to Civil Code 2223, 2224, et seq.

On 3/19/25, Hossain was personally served with the summons and complaint. (See Proof of Service filed 3/25/25). On 4/24/25, default was entered against Hossain. On 5/23/25, Mou answered the complaint. On 12/4/25, Hossain, appeared at the Case Management Conference.

On 3/2/26, Hossain, represented by counsel, Ron Quijada of the Law Offices of Ron Quijada, filed and served the instant motion seeking an order setting aside the default entered against him on 4/24/25. On 7/3/26, Plaintiff filed and served an opposition to the motion. The proofs of service attached to the opposition show that it was served on counsel for co-Defendant Mou, John Bussman of Absolute Law Group, and Hossain, "in pro per." (See Opposition, pdf 8-11). There is no indication that the opposition was served on attorney Quijada who filed this motion on behalf of Hossain. Further, the address listed for Hossain in the proof of service for the opposition is defective in that it lists the city as "Chatsworth Irvine." (See Opposition, pdf 11). No reply to the opposition has been filed.

Since there is no evidence that the opposition was properly served on Hossain in this matter, the hearing on the motion will be continued. Counsel for Plaintiff is ordered to serve the opposition on attorney Quijada, who filed this motion on behalf of Hossain. If Hossain wishes to file a reply to the opposition, such must be filed and served, pursuant to CCP 1005(c), at least 5 court days before the continued hearing date.